

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
HELARY DUPIGNY,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. MICHAEL FAHMY,
Shield No. 1434, Individually and in his Official Capacity,
DET. GERARD SARDINA, Shield No. 4134,
Individually and in his Official Capacity, DET. JEREMY
DEMARCO, Shield No. 1992, Individually and in his
Official Capacity, and P.O.'s "JOHN DOE" #1-10,
Individually and in their Official Capacity (the name John
Doe being fictitious, as the true names are presently
unknown),

Defendants.
-----X

CV 12 - 1367

COMPLAINT

JURY TRIAL DEMANDED

ECF CASE

Brodie, J.
REYES, M.

U.S. DISTRICT COURT
EASTERN DISTRICT
OF NEW YORK
2012 MAR 20 PM 12:00

FILED
CLERK

Plaintiff HELARY DUPIGNY, by his attorneys, COHEN & FITCH LLP, complaining of
the defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and
attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violations of his civil
rights, as said rights are secured by said statutes and the Constitutions of the State of New York
and the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988, and the
Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under U.S.C. §1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff HELARY DUPIGNY is an African-American male and has been at all relevant times a resident of the City and State of New York.

7. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

9. At all times hereinafter mentioned, the individually named defendants P.O. MICHAEL FAHMY, DET. GERARD SARDINA, DET. JEREMY DEMARCO, and P.O.s "JOHN DOE" #1-#10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. At all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

FACTS

THE APRIL 13, 2010, INCIDENT

13. On or about April 13, 2010, at approximately 3:45 p.m., plaintiff HELARY DUPIGNY was lawfully present near his car in front of his home at 535 Parkside Avenue, in Kings County in the City and State of New York.

14. At the aforesaid time and place defendant officers approached plaintiff with their guns drawn and immediately searched him uncovering no evidence of criminal or unlawful activity.

15. Thereafter, defendant officers performed a search of plaintiff's car, which uncovered no evidence of criminal or unlawful activity whatsoever.

16. Nevertheless, the officers placed plaintiff under arrest, handcuffing his arms tightly behind his back, and charged him with Criminal Possession of Marijuana in the Fifth Degree and Unlawful Possession of Marijuana.

17. At no time on April 13, 2010, did plaintiff HELARY DUPIGNY possess or control any amount of marijuana nor did he act unlawfully in any way.

18. At no time on April 13, 2010, did defendants possess probable cause to arrest plaintiff.

19. At no time on April 13, 2010, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

20. As a result of his unlawful arrest plaintiff HELARY DUPIGNY spent approximately seventy-two (72) hours in police custody and approximately eight (8) months making numerous court appearances.

21. In connection with his arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the Kings County District Attorney's Office.

22. Thereafter, defendants repeatedly gave false and misleading testimony regarding the facts and circumstances of plaintiff's arrest.

23. Specifically, defendants falsely alleged that plaintiff possessed marijuana in his hand and in the ashtray of his car.

24. Despite defendants actions all charges against plaintiff HELARY DUPIGNY were dismissed on December 7, 2010.

25. As a result of the foregoing, plaintiff HELARY DUPIGNY sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

THE APRIL 20, 2010, INCIDENT

26. On or about April 20, 2010, at approximately 5:30 p.m., plaintiff HELARY DUPIGNY was lawfully present and leaving a friend's apartment at 530 Parkside Avenue, in Kings County in the City and State of New York.

27. At the aforesaid time and place, at least two (2) of the defendant officers from the April 13, 2010, incident approached plaintiff, searched him, uncovering no evidence of criminal or unlawful activity, began berating him, and demanded to see identification.

28. Plaintiff complied with defendant officers' requests and, unsatisfied, they demanded to know where plaintiff had come from, insisting, with no factual basis, that plaintiff had been trespassing.

29. Plaintiff provided defendant officers with the apartment number of the friend he had been visiting and the officers went to confirm the information.

30. When plaintiff's friend confirmed that plaintiff had been visiting him, the officers placed plaintiff under arrest, handcuffing his arms tightly behind his back, and charged him with Resisting Arrest and two counts of Disorderly Conduct.

31. At no time on April 20, 2010, did plaintiff HELARY DUPIGNY resist a lawful arrest, behave in a disorderly manner, or act unlawfully in any way.

32. At no time on April 20, 2010, did defendants possess probable cause to arrest plaintiff.

33. At no time on April 20, 2010, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

34. As a result of his unlawful arrest plaintiff HELARY DUPIGNY spent approximately ninety-six (96) hours in police custody and approximately nine (9) months making numerous court appearances.

35. Despite defendants unlawful actions, the proceedings against plaintiff HELARY DUPIGNY were adjourned in contemplation of dismissal on January 20, 2012.

36. As a result of the foregoing, plaintiff HELARY DUPIGNY sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FIRST CLAIM FOR RELIEF ARISING FROM THE APRIL 13, 2010, ARREST FOR DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "36" with the same force and effect as if fully set forth herein.

38. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

39. All of the aforementioned acts deprived plaintiff HELARY DUPIGNY of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

40. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

41. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices,

procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

42. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING FROM THE APRIL 13, 2010, ARREST FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

43. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "42" with the same force and effect as if fully set forth herein.

44. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

45. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF ARISING FROM THE APRIL 13, 2010, ARREST FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

46. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "45" with the same force and effect as if fully set forth herein.

47. Defendants misrepresented and falsified evidence before the Kings County District Attorney.

48. Defendants did not make a complete and full statement of facts to the District Attorney.

49. Defendants withheld exculpatory evidence from the District Attorney.

50. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff HELARY DUPIGNY.

51. Defendants lacked probable cause to initiate criminal proceedings against plaintiff HELARY DUPIGNY.

52. Defendants acted with malice in initiating criminal proceedings against plaintiff HELARY DUPIGNY.

53. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff HELARY DUPIGNY.

54. Defendants lacked probable cause to continue criminal proceedings against plaintiff HELARY DUPIGNY.

55. Defendants acted with malice in continuing criminal proceedings against plaintiff HELARY DUPIGNY.

56. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings, specifically defendants falsely alleged plaintiff possessed marijuana.

57. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff HELARY DUPIGNY's favor on or about December 7, 2010 when the charges against him were dismissed.

58. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**FOURTH CLAIM FOR RELIEF ARISING FROM THE APRIL 13, 2010, ARREST FOR
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

59. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "58" as if the same were more fully set forth at length herein.

60. Defendants created false evidence against plaintiff HELARY DUPIGNY, specifically defendants falsely alleged plaintiff possessed marijuana.

61. Defendants forwarded false evidence and false information to prosecutors in the Kings County District Attorney's Office.

62. Defendants misled the prosecutors by creating false evidence against plaintiff HELARY DUPIGNY and thereafter providing false testimony throughout the criminal proceedings.

63. In creating false evidence against plaintiff HELARY DUPIGNY, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

64. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**FIFTH CLAIM FOR RELIEF ARISING FROM THE APRIL 13, 2010, ARREST FOR
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

65. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "64" with the same force and effect as if fully set forth herein.

66. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

67. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing.

68. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

69. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

70. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

71. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

72. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff HELARY DUPIGNY's constitutional rights.

73. The acts complained of deprived plaintiff of his rights:

- a) Not to be deprived of liberty without due process of law;
- b) To be free from seizure and arrest not based upon probable cause;
- c) To be free from unlawful search;
- d) Not to have summary punishment imposed upon him; and
- e) To receive equal protection under the law.

SIXTH CLAIM FOR RELIEF ARISING FROM THE APRIL 20, 2010, ARREST FOR DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

74. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "73" with the same force and effect as if fully set forth herein.

75. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

76. All of the aforementioned acts deprived plaintiff HELARY DUPIGNY of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

77. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

78. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

79. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SEVENTH CLAIM FOR RELIEF ARISING FROM THE APRIL 20, 2010, ARREST
FOR FALSE ARREST UNDER 42 U.S.C. § 1983**

80. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "79" with the same force and effect as if fully set forth herein.

81. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

82. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**EIGHTH CLAIM FOR RELIEF ARISING FROM THE APRIL 20, 2010, ARREST FOR
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

83. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "82" as if the same were more fully set forth at length herein.

84. Defendants created false evidence against plaintiff HELARY DUPIGNY, specifically defendants falsely alleged plaintiff resisted a lawful arrest and behaved disorderly.

85. Defendants forwarded false evidence and false information to prosecutors in the Kings County District Attorney's Office.

86. Defendants misled the prosecutors by creating false evidence against plaintiff HELARY DUPIGNY and thereafter providing false testimony throughout the criminal proceedings.

87. In creating false evidence against plaintiff HELARY DUPIGNY, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

88. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

NINTH CLAIM FOR RELIEF ARISING FROM THE APRIL 20, 2010, ARREST FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

89. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "88" with the same force and effect as if fully set forth herein.

90. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

91. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing.

92. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

93. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

94. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

95. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

96. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff HELARY DUPIGNY's constitutional rights.

97. The acts complained of deprived plaintiff of his rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from unlawful search;
- D. Not to have summary punishment imposed upon him; and
- E. To receive equal protection under the law.

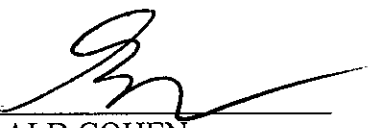
98. As a result of the foregoing, plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and

- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
March 19, 2012

BY: 
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